

they expressed their intent to ask the court to compel mediation and arbitration.

The Fee Agreement is apparently reflected in Exhibit B to the Motion. Without listing the language explicitly, Paragraph 9 quite clearly calls for the parties to first attempt to resolve any fee disputes through mediation; if that proves unsuccessful, arbitration is the next step. There doesn't appear to be any term in the agreement that requires either party to formally request mediation of the other party to trigger the process.

Analysis

In the instant matter, the intent of the term of the agreement covering fee disputes is quite clear: Parties need to start with mediation.

The court does not feel that the Demurrer is ripe for decision at this point, so will not rule on it.

Disposition

Defense's Motion to compel the mediation and arbitration process is granted.

Defense to initiate that process.

This matter will be stayed until the mediation and arbitration process is exhausted.

The current CMC of 6/4/26, will remain, however, at which time the court will check on the progress of mediation and arbitration.

Defense to file Order.

13. 9:00 AM CASE NUMBER: L26-00081

CASE NAME: CROWN ASSET MANAGEMENT LLC VS. DONPREYEL MARTIN

***HEARING ON MOTION IN RE: STAY OF PROCEEDINGS PENDING ARBITRATION**

FILED BY: MARTIN, DONPREYEL

TENTATIVE RULING:

Defendant has filed a motion to compel arbitration and stay proceedings. However, no there is no proof that the opposition has been given notice.

Disposition

This motion will be continued to 7/28/26, 9am.

Defendant to file Order of continuance.

Defendant to provide notice to Plaintiff.

14. 9:00 AM CASE NUMBER: MSL22-00197

CASE NAME: PORTFOLIO VS. CASTRO

*HEARING ON MOTION IN RE: SET ASIDE JUDGMENT

FILED BY: PORTFOLIO RECOVERYASSOCIATES,LLC

TENTATIVE RULING:

Plaintiff has filed a Motion to set aside judgment. Plaintiff has also requested that the case be dismissed without prejudice.

Plaintiff has properly noticed Defendant, and the Motion is unopposed.

Disposition

Motion to set aside judgment is granted.

Case will be dismissed.

Plaintiff to file Order.